



File No.: EXP202306753

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on April 9, 2023. The complaint is directed against CUBILLO GALLEGO, S.L. with NIF B16775207 (hereinafter, CUBILLO). On April 14, 2023, a complaint against CUBILLO was filed.

The reasons for the complaints are as follows:

In the first document received, the complainant states that CUBILLO does not adequately provide customers and users of its website <https://www.cubillogallego.com> with information related to the processing of personal data.

Specifically, in the section "Privacy Policy" of CUBILLO, the "Responsible" appears as "XXXXX" and for the exercise of the rights provided in the GDPR regarding their personal data, the email address provided is XXXXXXX@XXXXXXX.es.

The complainant believes that the actual data of the company is not well reflected, which makes it difficult for the responsible party to face a possible claim or lawsuit against them, and that this lack of transparency is contrary to data protection legislation.

Along with the complaint of April 9, the complainant provides a screenshot of the Privacy Policy <https://www.cubillogallego.com>, located in a dropdown next to the contact form. On April 14, 2023, they also provide an exclusive sales assignment note shared on October 27, 2021, between B.B.B. and C.C.C..

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to CUBILLO for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on May 24, 2023, as evidenced by the receipt from the Single Enabled Electronic Address (DEHÚ) that is part of the file.

No response has been received to this forwarding document.

THIRD: On July 9, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On November 29, 2023, a diligence of the screenshots of the collection of personal data and "Privacy Policy," obtained from the website <https://www.cubillogallego.com/>, was incorporated into the electronic file. In all of them, the "Responsible" appears as "XXXXX" in the "Privacy Policy" section, and for the exercise of the rights provided in the GDPR regarding their personal data, the email address provided is "XXXXXX@XXXXXXX.es."

FIFTH: On January 15, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: The aforementioned initiation agreement was notified on January 15, 2024, with acknowledgment of receipt on January 16, 2024, in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution.

In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made any allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution. In view of all that has been acted upon by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: CUBILLO collects personal data from the interested party through the contact form and subscription to the news bulletin of the website.

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<https://www.cubillogallego.com>; specifically, name, surname, phone number, subject, and email address.

SECOND: In the "Privacy Policy" section of the aforementioned website, it is stated that the purpose of data processing is the provision of real estate professional services and the response to information requests. "XXXXXX" appears in the Responsible field and XXXXXX@XXXXXXX.es as the email address provided for exercising the rights established in the GDPR regarding personal data.

THIRD: The privacy policy does not inform about the period during which personal data will be retained, nor about the right to lodge a complaint with a supervisory authority.

FOURTH: The exclusive sales mandate contract shared between B.B.B. and C.C.C. also does not include the information required by Article 13 of the GDPR when personal data is obtained from the data subject.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

The GDPR aims to guarantee the right to the protection of personal data of individuals. Article 4.1 of the GDPR defines "personal data" as: "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

Article 4.2 of the GDPR defines "processing" as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction."

Therefore, in accordance with the above definitions, the processing of personal data is evident, as CUBILLO collects personal data (name, surname, phone number, and email address) through the contact and subscription forms available on the website <https://www.cubillogallego.com>.

III

Transparency in the Processing of Personal Data

Processing must be governed by the principles outlined in Article 5 of the GDPR, which states:

"Personal data shall be: a) processed lawfully, fairly, and in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency'); (...)". The principle of transparency is primarily regulated in Articles 12 to 14 of the GDPR. In this regard, Article 12 of the GDPR establishes that "1. The controller shall take appropriate measures to provide the data subject with all the information referred to in Articles 13 and 14" and contains various rules regarding the "form" in which the mandatory information must and can be provided.

The content of the information regarding the processing of data that must be provided to the data subject is regulated in the GDPR in Articles 13 and 14, which distinguish two scenarios: when data is collected from the data subject (Article 13 GDPR) or obtained from another source (Article 14 GDPR). Article 13 "Information to be provided when personal data are collected from the data subject" of the GDPR states: "1. When personal data relating to a data subject are obtained from the data subject, the controller shall, at the time of obtaining the data, provide the data subject with all the information referred to below:

- a) The identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;

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f) where applicable, the intention of the data controller to transfer personal data to a third country or international organization and the existence or absence of a decision of adequacy by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second sentence, reference to adequate or appropriate safeguards and the means to obtain a copy of these or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be retained or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, or to object to processing, as well as the right to data portability;
- c) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of failing to provide such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs

1 and 4, and, at least in such cases, significant information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which they were collected, it shall provide the data subject, prior to that further processing, information about that other purpose and any additional relevant information in accordance with paragraph 2.

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.”

In this regard, Recital 60 of the GDPR states that “The principles of fair and transparent processing require that the data subject be informed of the existence of the processing operation and its purposes. The data controller must provide the data subject with any supplementary information necessary to ensure fair and transparent processing, taking into account the circumstances and the specific context in which the personal data are processed. The data subject must also be informed of the existence of profiling and the consequences of such profiling. If the personal data are obtained from the data subjects, they must also be informed whether they are obliged to provide the data and of the consequences of failing to do so.”

In light of the documentation in the administrative file, it is evident that CUBILLO collects personal data from the data subject through the contact form and subscription to the newsletter on the website <https://www.cubillogallego.com>; specifically, name, surname, phone number, subject, and email address.

In the “Privacy Policy” section of the aforementioned website, it is stated that the purpose of data processing is to provide real estate professional services and to respond to information requests. However, “XXXXX” appears in the Responsible field and XXXXXX@XXXXXXX.es as the email address provided for exercising the rights provided in the GDPR regarding their personal data. Neither the data controller nor the contact address appears under the heading “Privacy Policy,” therefore CUBILLO fails to comply with Article 13, paragraph 1 of the GDPR:

“1. When personal data are obtained from a data subject, the data controller, at the time of obtaining them, shall provide the data subject with all the information indicated below:

a) the identity and contact details of the controller and, where applicable, of its representative.”

On the other hand, other mandatory information required in paragraph 2 letters a and d of Article 13 of the GDPR is also not adequately included on CUBILLO's website:

“a) the period for which the personal data will be retained...”

“d) the right to lodge a complaint with a supervisory authority.”

In the exclusive shared sales mandate contract between B.B.B. and C.C.C., the information required by Article 13 of the GDPR when personal data are obtained from the data subject is also not included.

IV

Qualification of the infringement of Article 13 of the GDPR

The proven facts imply a violation of Article 13 of the GDPR classified under Article 83.5.b) of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

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“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount: a) (...) b) The rights of the data subjects pursuant to Articles 12 to 22;”

For the mere purposes of prescription, Article 72.1 h) of the LOPDGDD qualifies as very serious “The failure to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law.”

The statute of limitations for very serious violations provided for in Organic Law 3/2018 is three years.

V

Amount of the sanction

The corrective powers of the Spanish Data Protection Agency, as the supervisory authority, are established in Article 58.2 of the GDPR. Among them is the authority to impose an administrative fine in accordance with Article 83 of the GDPR - Article 58.2 i) - or the authority to order the data controller or processor to ensure that the processing operations comply with the provisions of the GDPR, when appropriate, in a specified manner and within a specified timeframe - Article 58.2 d).

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2 d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

In this case, considering the facts presented, it is deemed that the sanction to be imposed is an administrative fine. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR.

In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR in its paragraph a) are considered relevant for this case:

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm they have suffered; (...)

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From the date of submission of this complaint on April 9, 2023, until the initiation of this file, CUBILLO's privacy policy fails to meet the information requirements provided for in Article 13 of the GDPR.

This non-compliance harms all data subjects who provide their data to CUBILLO, either through its website or by signing contracts without the necessary guarantees, as the lack of identification prevents the proper exercise of rights against the controller.

In the Initiation Agreement, in section 4 “IT IS AGREED” the amount of two thousand euros (2,000€) appears for the administrative fine. In other sections of the Initiation Agreement, such as in the proposed sanction, the initial assessment of the administrative fine is three thousand euros (3,000€), and in section 5 of “IT IS AGREED” this same amount is also used as the basis for calculating the 3 possible reductions of 20% and 40% of the administrative fine.

In light of the above, the correct amount of the administrative fine in the Initiation Agreement is three thousand euros (3,000€), and therefore the erroneous amount in section 4 “IT IS AGREED” must be rectified.

Pursuant to Article 109.2 of the LPACAP, “2. Public Administrations may also rectify at any time, ex officio or at the request of the interested parties, material, factual, or arithmetic errors existing in their acts,” thus proceeding to rectify the error in section 4 of the “IT IS AGREED” of the Initiation Agreement, which is now worded as follows:

“FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, for the alleged infringement of Article 13 of the GDPR, classified in Article 83.5 of said regulation, an administrative fine of three thousand euros (3,000€), without prejudice to what results from the instruction.”

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 13 of the GDPR classified in Article 83.5 of the GDPR. The sanction to be imposed is an administrative fine in the amount of 3,000€ (three thousand euros).

VI

Imposition of measures

It is appropriate to impose on the controller the adoption of adequate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specified manner and within a specified timeframe...”.

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In view of all the above, CUBILLO, as the data controller, is required to incorporate the necessary information into its privacy policy on its website <https://www.cubillogallego.com> within a period of 1 month, as well as the information required by Article 13 of the GDPR in the contracts that CUBILLO enters into with the data subjects.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on CUBILLO GALLEGO, S.L., with NIF B16775207, a fine of three thousand euros (3,000 euros) for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO ORDER CUBILLO GALLEGO, S.L., with NIF B16775207, that pursuant to Article 58.2.d) of the GDPR, within a period of 1 month from the date this resolution becomes final and enforceable, to demonstrate compliance by incorporating the necessary information into its privacy policy on its website <https://www.cubillogallego.com>, as well as the information required by Article 13 of the GDPR in the contracts that CUBILLO enters into with the data subjects.

THIRD: TO NOTIFY this resolution to CUBILLO GALLEGO, S.L.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right.

The sanctioned party is warned that they must comply with the imposed sanction once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file

a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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